

26NWCV00324 26NWCV00324

County: los-angeles

Division: Civil Law and Motion

Department: SEP

Hearing date: 2026-09-22

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Case Number: 26NWCV00324 Hearing Date: September 22, 2026 Dept: SEP

KIM v. ALASKA BENTO, INC.

CASE NO.: 26NWCV00324

HEARING: 09/22/2026 @ 9:30 AM

#12

TENTATIVE ORDER

Defendant Alaska Bento Inc.'s motion to vacate default judgment and stay eviction is DENIED without prejudice.

Moving party to give notice.

Defendant Alaska Bento Inc. (Defendant) moves to vacate default judgment and stay an eviction.

Background

On January 27, 2026, Plaintiff Myung Hye Kim (Plaintiff) filed this unlawful detainer action against Defendant regarding the premises located at 5805 Florence Ave., Bell Gardens, CA 90201 (Premises).

On March 27, 2026, Default was entered as to Defendant. On April 3, 2026, Default Judgment was entered for possession of the Premises.

On April 6, 2026 a Writ of Possession was issued and on July 10, 2026, the Writ was returned.

On September 15, 2026, Defendant filed a Substitution of Attorney reflecting that Defendant was formerly representing itself and is now represented by an attorney.

Discussion

On May 4, 2026, Defendant filed a Notice of Motion and Motion to Vacate Judgment and Request to Stay Eviction.

In opposition, Plaintiff argues that Defendant cannot represent itself as a corporation.

Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 730, provides the long-standing rule that “[a] corporation cannot represent itself in court, either in propria persona or through an officer or agent who is not an attorney.” The rule has since been relaxed such that there is an “increasing acceptance of the view that representation of the corporation by an attorney is not an absolute prerequisite to the court's fundamental power to hear or determine a case,...it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1149.)

Here, since the instant motion was brought by Defendant while Defendant was not represented, the Court cannot rule on or grant this motion. However, in light of the shifting perspective that representation is a defect that may be corrected and that Defendant has taken steps to correct this defect, Defendant is not precluded from filing a motion for the relief requested here after curing this defect.

Accordingly, Defendant's motion to vacate default judgment and stay the eviction is DENIED without prejudice.

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